BOARD OF DIRECTORS
SCHOOL DISTRICT NO. 1J, MULTNOMAH COUNTY, OREGON

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REGULAR BUSINESS MEETING

FEBRUARY 28, 2005

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OFFICE OF THE BOARD OF DIRECTORS
SCHOOL DISTRICT NO. 1J, MULTNOMAH COUNTY, OREGON
BLANCHARD EDUCATION SERVICE CENTER
PORTLAND, OREGON

FEBRUARY 28, 2005

The regular business meeting of the Board of Directors came to order at 6:30 p.m. on the above date at the call of Chairperson Wynde. There were present:

Julia Brim-Edwards
Derry A. Jackson, Sr. -- *absent*
Doug Morgan
Lolenzo Poe -- *absent*
Bobbie Regan
Dilafruz Williams -- *absent*
David Wynde

Suleima Cortez, Student Representative

Vicki L. Phillips, Superintendent
Jollee Patterson, General Counsel/Board Secretary
Julie Joel, Executive Assistant, PPS Board of Education

Purchases, Bids, Contracts

The Superintendent RECOMMENDED adoption of the following item:

Number 3218

Vice Chair Regan moved adoption of the above-numbered item. The motion was put to a voice vote and passed unanimously (vote: 4-yes; 0-no); Directors Jackson, Poe and Williams absent from voting; Student Representative voting yes, unofficial.

Contract Approval
Air Conditioning Installation at Wilcox Site

3218 WHEREAS, The Board of Education for School District No. 1J, Multnomah County, Oregon has designated itself as the Local Public Contract Review Board in accordance with ORS 279.055; and

WHEREAS, The Board previously approved a Capital Improvement Program budget that included the installation of a new air conditioning system at the Wilcox Site; and

WHEREAS, In accordance with District Procurement Rules, competitive offers were solicited from pre-qualified contractors, with American Heating being the lowest bidder at $181,430. All offers were above the engineer's estimate; and

WHEREAS, State and local bidding rules allow public agencies to negotiate with the low bidder when all offers exceed the engineer's estimate. Through the use of value engineering the Facilities Director believes that over $10,000 can be saved; and

WHEREAS, The Procurement Director believes the use of an informal bid process has resulted in a favorable offer to the District, and that proceeding with award to the low bidder would be beneficial. It is further believed that competition was not harmed since a competitive solicitation process was used, and that this action will result in cost savings to the District through the use of value engineering; now therefore be it

RESOLVED, The Procurement Director be authorized to utilize an informal bid process in lieu of formal bidding, and the Deputy Clerk be authorized to execute a contract with American Heating. The contract shall be in a form approved by the General Counsel in an amount not to exceed $170,000 with the work being performed under the direction of Facilities and Asset Management (5593), and shall be funded by Columbia Regional Program State Grant funds.

(P. Brown / D. Matthews)

Expenditures

The Superintendent RECOMMENDED adoption of the following item:

Number 3219

Vice Chair Regan moved adoption of the above-numbered item. The motion was put to a voice vote and passed unanimously (vote: 4-yes; 0-no); Directors Jackson, Poe and Williams absent from voting; Student Representative voting yes, unofficial.

Payment For Professional Services
Self-Insurance Funds
(Legal Services)

3219 RESOLVED, That authority be granted to pay the following professional services providers:

Payee	*Description*	*Date*	*Amount*	*Fund*
Vavrosky, MacColl, Olson & Pfeifer, PC	Defense of various Workers' Comp. Claims	12/01/04 through 12/31/04	$ 1,832.07	601/5540
Reinisch, Mackenzie, Healey, Wilson & Clark	Defense of various Workers' Comp. Claims	10/01/04 through 12/31/04	$ 2,833.24	601/5540
Mersereau & Shannon, LLP	Defense of various Liability Claims	12/01/04 through 12/31/04	$ 2,787.17	601/5540

(H. Franklin)

Other Matters Requiring Board Action

The Superintendent RECOMMENDED adoption of the following items:

Numbers 3220 through 3225

Vice Chair Regan moved adoption of the above-numbered item, with the exceptions of Board Actions 3224 and 3225 which were voted on during the Committee of the Whole. The motion was put to a voice vote and passed unanimously (vote: 4-yes; 0-no); Directors Jackson, Poe and Williams absent from voting; Student Representative voting yes, unofficial.

During the Committee of the Whole, Vice Chair Regan moved adoption of Board Action 3224. The motion was put to a voice vote and passed unanimously (vote: 4-yes; 0-no); Directors Jackson, Poe and Williams absent from voting; Student Representative voting yes, unofficial.

During the Committee of the Whole, Director Morgan moved adoption of Board Action 3225. The motion was put to a voice vote and passed unanimously (vote: 4-yes; 0-no); Directors Jackson, Poe and Williams absent from voting; Student Representative voting yes, unofficial.

Adoption of Public Contracting and Purchasing Rules

3220 WHEREAS, The Board of Education of School District No. 1J, Multnomah County, Oregon has designated itself as the Local Public Contract Review Board in accordance with ORS 279; and

WHEREAS, The 2003 Oregon Legislative Assembly enacted a new Public Contracting Code, ORS Chapters 279A, 279B, and 279C, effective March 1, 2005; and

WHEREAS, The Oregon Attorney General has adopted new Public Contract Rules to implement the Public Contracting Code; and

WHEREAS, Current ORS 279.049(5) and new ORS 279A.065 empowers public contracting agencies such as the District to adopt rules of procedure for public contracts; and

WHEREAS, ORS 279A.055(2) authorizes the Board to designate certain contracts as personal services contracts; and

WHEREAS, ORS 279B.085 authorizes the Board to declare certain public contracts or classes of contracts for goods and services as special procurements exempt from the competitive procurement process otherwise required by ORS Chapter 279B, upon certain findings; and

WHEREAS, ORS 279B.215 authorizes the Board to determine classes of contracts for goods and services which brand names may be specified, upon certain findings; and

WHEREAS, ORS 279C.0355(2) authorizes the Board to exempt certain contracts or classes of contracts for public improvements from competitive bidding under ORS Chapter 279C; and

WHEREAS, The District operates under its own set of Public Contract Rules, which Rules will be superseded for contracts advertised after March 1, 2005; and

WHEREAS, The Board deems it necessary and advisable to adopt its own updated Rules to address these statutory and rule changes; therefore be it

RESOLVED:

1. The Board hereby adopts the Contracting and Purchasing Rules attached as Exhibit A and incorporates them into the District Policies, effective March 1, 2005.
2. The District's current Contracting and Purchasing Rules are superseded beginning March 1, 2005, for contracts first advertised after that date. The District's current rules will continue to apply to contracts first advertised or in process prior to that date.
3. The special procurements, brand name specifications, and exemptions from competitive bidding enacted in the Rules set forth in Exhibit A are based upon the findings of fact and conclusions of law in attached Exhibit B.

(D. Matthews)

Revenue Contracts that Exceed $25,000 Limit for Delegation of Authority

3221 WHEREAS, Pursuant to Board Policy 8.90.010 Contracts, School Board approval is required to enter into and approve revenue where the total amount reaches $25,000 or more per contractor; and

WHEREAS, That such contracts are listed below and have reached or exceeded $25,000 per contractor; therefore be it

RESOLVED, That the Superintendent recommends that these contracts be approved and authorization granted to the Deputy Clerk to enter into agreements in a form approved by Counsel for the District:

Contractor	*Term of Service*	*Description of Services*	*Fund/Grant/ Dept. ID. #*	*Amount*	*Resp. Admin.*
The NARAS Foundation	08/11/04 through 07/31/05	NARAS foundation (the Grammy Foundation) to provide resources, staff development, and subsidy to Jackson MS.	Fund 101	$35,920 estimated value of services	J. Fischer

Expenditure Contracts that Exceed $25,000 Limit for Delegation of Authority

3222 WHEREAS, Pursuant to Board Policy 8.90.010 Contracts, School Board approval is required to enter into and approve payment for products, materials, supplies, capital outlay, equipment and services where the total amount reaches $25,000 or more per contractor; and

WHEREAS, That such contracts are listed below and have reached or exceeded $25,000 per contractor; therefore be it

RESOLVED, That the Superintendent recommends that these contracts be approved and authorization granted to the Deputy Clerk to enter into agreements in a form approved by Counsel for the District:

Contractor	*Term of Service*	*Type of* Contract	*Description of Services*	*Fund/ Dept. ID. #*	*Amount*	*Vendor Total*	*Resp. Admin.*
Mt Scott Learning Center, Inc.	09-01-04 Through 06-30-05	Personal / Professional Services Contract Contract # PS 53473	Contract with Mt Scott Learning Center for Services to Title I students for2004-05 school year	Fund 205 Dept 6906 Grant G0580	$18,031	$105,072	C Leonard
Belfor	03-01-05 Through 12-14-06	Construction Contract Contract # C 53465	Initial Emergency and Disaster Response to Damaged Facilities	Fund 601 Dept 5540	$140,000	$140,000	P Brown
Multnomah Education Service District	08-01-04 Through 06-30-05	Intergovern-mental Agreement Contract # IGA 53484	Provide for the participation of Sixth Grade Students from PPS in the Outdoor School Program for the 2004-05 school year.	Fund 101 Dept 6299	$992,901	$11,138,002	H Adair
Young Audiences of Oregon Inc.	10-01-04 Through 05-13-05	Personal / Professional Services Contract Contract # PS 53485	Various stage productions for the 2004-05 school year	Run for the Arts	$6,315	$31,145	J Fischer
Young Audiences of Oregon Inc.	03-01-05 Through 06-30-05	Personal / Professional Services Contract Contract # MSTR # 53440	Master Contract to be used by all schools and departments to hire artists listed in “The Educators Guide To Community Arts”.	Various	$25,000	$56,145	D Matthews

Contractor	*Term of Service*	*Type of* Contract	*Description of Services*	*Fund/ Dept. ID. #*	*Amount*	*Vendor Total*	*Resp. Admin.*
Hewlett Packard	02-16-05	Purchase Order #44296	This equipment is to replace the existing hardware for the Web Portal Project	Fund 101 Dept 5581	$31,240	$31,240	S Robinson
LGA Architecture	02-28-05 Through 12-31-05	Personal/ Professional Services Contract Contract # PS 53490	Architectural and Design Services for dishwasher installation at 11 sites	Fund 402 Fund 403 Dept 5591	$42,350	$52,721	P Brown
LGA Architecture	02-28-05 Through 12-31-05	Personal/ Professional Services Contract Contract # PS 53491	Architectural and Design Services for Bridger Elementary Water Pipe Replacement	Fund 402 Fund 403 Dept 5591	$5,720	$58,441	P Brown
LGA Architecture	02-28-05 Through 12-31-05	Personal/ Professional Services Contract Contract # PS 53489	Architectural and Design Services for Portsmouth Water Pipe Replacement	Fund 402 Fund 403 Dept 5591	$3,000	$61,441	P Brown
LGA Architecture	02-28-05 Through 12-31-05	Personal/ Professional Services Contract Contract # PS 53492	Architectural and Design Services for Capital Hill Water Pipe Replacement	Fund 402 Fund 403 Dept 5591	$3,000	$64,441	P Brown
LGA Architecture	02-28-05 Through 12-31-05	Personal/ Professional Services Contract Contract # PS 53494	Architectural and Design Services for Rose City Water Pipe Replacement	Fund 402 Fund 403 Dept 5591	$4,400	$68,841	P Brown
LGA Architecture	02-28-05 Through 12-31-05	Personal/ Professional Services Contract Contract # PS 53495	Architectural and Design Services for Laurelhurst Brick Restoration and Window Evaluation	Fund 402 Fund 403 Dept 5591	$14,245	$83,086	P Brown

Contractor	*Term of Service*	*Type of* Contract	*Description of Services*	*Fund/ Dept. ID. #*	*Amount*	*Vendor Total*	*Resp. Admin.*
Environmental & Engineering Services, Inc.	02-28-05 Through 02-28-06	Personal/ Professional Services Contract Contract # PS 53496	Mechanical Engineering Services for Boiler System upgrades at six sites	Fund 402 Fund 403 Dept 5591	$32,900	$137,342	P Brown
PBS Engineering and Environmental	02-28-05 Through 12-31-05	Personal/ Professional Services Contract Contract # PS 53497	Design and construction period services for Jackson Middle School Library Abatement Project	Fund 402 Fund 403 Dept 5591	$26,000	$179,594	P Brown
Professional Roof Consultants	05-10-04 Through 09-30-05	Personal/ Professional Services Contract Amend #2 Contract # PS 52845	Detail Design Specification for Roof Penetrations	Fund 205 Fund 402 Fund 403 Dept 5430 Dept 5591	$5,000	$38,249	P Brown
Night Movers	10-15-04 Through 10-14-05	Requirements Contract Amend #1 Contract # GS 52309	Moving and Storage services on an as-needed basis.	Various	$25,000	$68,015	P Brown
Performance Fact, Inc	02-01-05 Through 07-31-06	Personal/ Professional Services Contract	Facilitation, planning and training services	Fund 205 Dept 2288	$60,000	$84,375	M Davalos
Marilyn Crawford	02-01-05 Through 09-30-06	Personal/ Professional Services Contract	Teacher coaching and curriculum instruction	Fund 205 Dept 2288	$60,000	$60,000	M Davalos
Maizels Abbott Design Collaborative, Inc.	08-20-04 Through 06-30-05	Personal/ Professional Services Contract Amend #1 Contract # PS 53132	Additional space planning	Fund 205 Dept 5430 Grant G0471	$5,000	$173,172	M Kilcrease

Approval of Administrative Directive Regarding Relocation Expenses

3223 WHEREAS, The Board of Education has adopted Policy 5.60.010 regarding Administrative Employees' Terms of Employment, and

WHEREAS, The Board has instructed the Superintendent to develop an administrative directive that limits the authorization of relocation expenses to exceptional circumstances, and

WHEREAS, Policy 5.50.010 requires the Board to specifically review and approve the administrative directive regarding recruitment and moving expenses for licensed and non-licensed employees, therefore be it

RESOLVED, That the Board approves the following administrative directive:

5.60.018-AD Relocation Expenses

Pursuant to Board Policy 5.60.010-P, Portland Public Schools may pay relocation expenses for newly hired, non-represented senior level staff following their appointment to a position with the District.

1. Conditions under which relocation expenses may be paid are as follows:

a. Distance from old location to Portland exceeds 500 miles.

b. District shall solicit three competitive bids based on the cost of one standard household move and one automobile if necessary. The District's Procurement Department will consult with the new employee in determining which bid meets the bid requirements.

c. Total expenditure for relocation is not to exceed $15,000.

2. Authorization for relocation expenses must be approved by the Superintendent. Any deviation from the amount specified herein must be approved by the Board.

3. Should the employee terminate his/her employment within the first year of employment, employee shall repay 100% of the relocation expenses. Should the district terminate employment within one year, the district remains responsible for the costs of relocation.

Adoption of Board Policy on District Funds for
Purchase of Meals and Refreshments for Meetings

3224 RESOLVED: That the following Board Policy 8.30.010-P District Funds for Purchase of Meals and Refreshments for Meeting

In order to comply with statutory requirements, the board directs the following:

1. Meals are defined as food provided at a customary time or occasion for eating (i.e. breakfast, lunch, dinner). Meals are generally more extensive than snacks.
2. Refreshments such as a beverage and/or pastry are considered snack items provided at times not generally a customary mealtime.
3. District funds may be used for expenditures for meals for District employees if an Administrator schedules a working lunch, training session, workshop involving district business or if a group works through a meal period and no meal break is provided.
4. District funds may be used for expenditures for refreshments for District employees at the discretion of the Administrator if the Administrator schedules a mandatory meeting for staff during or outside of the normal work day.
5. Administrators may, at their discretion, purchase nominal food and drink for meetings involving members of the community who are voluntarily assisting the District in its mission.
6. Administrators are expected to exercise prudent and appropriate judgment in the expenditure of District funds for food or drink.
7. Grant funds are subject to the same guidelines as outlined in this policy. Additional or other expenditures for food and drink may be made with grant funds when the event requiring the refreshments was included in the grant proposal and approved by the granting agency.

History: Government Standards and Practices Commission staff opinion No. 01S-016 and ORS 244.040(1)(a)

Adoption of Board Policy on Administrative Employees' Terms of Employment

3225 RESOLVED, That the following Board Policy 5.60.010-P Administrative Employees' Terms of Employment is adopted:

I. Definitions

(1) Superintendent; Licensed Administrators; Non-Licensed Administrators

(a) Superintendent – Appointed by the Board and holds a valid, permanent or temporary Superintendents' license from the Oregon Teacher Standards and Practices Commission (TSPC.)

(b) Licensed Administrators – employees who have met the standards and administrative licensing requirements of the TSPC, hold a current administrator's license with TSPC, and are employed in a District position that requires TSPC licensing.

(c) Non-licensed Administrators - Employees of the district that are not represented by a bargaining unit, do not meet the definition of "Licensed Administrator" or "Superintendent," and whose position is classified as Grade 20 or higher on the Administrator, Supervisor, and Professional/Technical (03) salary schedule. For purposes of this policy and related Administrative Directives, a non-licensed administrator may hold a valid teaching or administrative license, but is not required by their current position to be licensed.

(2) Employment Contracts - a binding written agreement between a Licensed Administrator or a Non-licensed Administrator and the Superintendent representing the District. All employment contracts must comply with this policy. For Licensed Administrators the employment contract must also be in compliance with ORS 342.845 (5) & (6), and policy 5.60.010-P.

II. Scope and Application

(1) This policy applies to all PPS employees whose job duties or requirements meet the definition of licensed or non-licensed Administrator as defined in this policy.

(2) Notwithstanding II (1) above, the terms of employment and contract provisions for the Superintendent are not covered by this policy.

(3) Terms of employment for Administrators required by statute or allowed by this policy to have a written contract will be outlined by their individual contract. Any issues not covered by the written contract will be governed by this policy or any appropriate policy or administrative directive.

(4) Terms of employment for Administrators not required or allowed a written contract will be governed by this policy or any appropriate policy or administrative directive.

III. General Terms of Employment – Licensed and Non-licensed Administrators

(1) Appointments

(a) The Board upon recommendation by the superintendent shall authorize the promotion of an existing employee or the hiring of a new employee into an administrative position.

(b) The candidate for the administrative position shall meet standards of eligibility established for such a position, possess training and experience relevant to such a position, and, in the opinion of the superintendent, be a qualified candidate. The Board and Superintendent shall follow District policies regarding Equal Employment Opportunity.

(c) Except as stated in this policy, no administrator shall begin work for the District prior to Board approval of the employment contract. Exceptions shall be approved by the Superintendent and the Chair of the Board in writing, and the full Board shall be informed of the exception prior to the work commencing. The employment contract shall presented to the full Board at the next scheduled Board meeting

(2) Assignments. The superintendent shall have authority to assign, or alter the assignment of, and to transfer any or all administrators in accordance with Oregon law and Board policies and directives.

(3) Employment contracts.

(a) The Superintendent shall develop a standard administrative contract. The standard contract of employment shall comply with all policies and administrative directives. The standard employment contract shall contain:

(A) Starting date;

(B) Position title;

(C) Work year length; however, the work year length specified in the contract may be amended or shortened due to the fiscal status of the District. If the work year is shortened and/or a furlough is imposed upon employees, the administrator's yearly salary will be adjusted accordingly;

(D) Starting salary;

(E) An ending or optional renewal date;

(F) Terms for participation in "pay for performance program, if such a program is available and approved by the Board and Superintendent; and,

(G) Term of contract and conditions for contract termination, extension, and employee resignation.

(b) The employment contract for all administrators shall be the standard administrative contract. The superintendent must seek Board approval for any exceptions to the standard contract for any particular administrator prior to the hiring or assignment of that individual.

(c) Each administrator shall have a current employment contract on file in the district central office.

(d) Administrative contracts shall not contain provisions to expressly obligate the district to compensate an employee for work that is not performed. The employment contract may include a provision that would permit payment of severance pay of an equivalent of no more than 90 days of the base salary of the terminated employee.

(4) Benefits.

(a) The Superintendent shall develop a benefit plan that may include medical, dental, vision, long-term disability, life insurance, participation in annuity or other tax benefit program. The Board, prior to implementation, shall approve the benefit plan, and addendums to the plan, recommended by the Superintendent.

(b) All Licensed and Non-licensed Administrators shall receive identical benefits outlined in (4)(a) unless the benefit plan specifies otherwise.

(5) Evaluation. The District shall endeavor to evaluate the performance of Administrators approximately annually, or at such other intervals as may be established by district policy or administrative directive.

(6) Salary Schedules.

(a) The Superintendent shall develop salary schedules for all Administrator positions. When developing the salary schedules, the Superintendent shall consider the need to attract high quality employees as well as to work within the budgetary limitations of the District. The Board shall approve the salary schedules.

(b) Administrator salary schedules shall be based on a market analysis of compensation and benefits received for like positions in the relevant public market.

(c) The development of the salary schedule for Licensed Administrators shall also include consultation with a representative group of licensed administrators.

(d) The administrator salary schedules approved under this policy shall be published annually in the district budget report.

(e) The salary of an individual newly hired or appointed to an Administrator position shall be determined with reference to the applicable Board approved salary schedule and following an evaluation of their training, experience, and the nature of the administrative position.

(7) PERS: The district shall make the employer contribution to PERS. The employee contribution to PERS shall be made through a pre-tax deduction from the Administrator's salary.

(8) Travel Reimbursement.

(a) The Superintendent shall develop a schedule of reimbursement for necessary travel for Administrators.

(b) The schedule may include a stipend for related travel.

(c) The schedule shall include actual mileage reimbursement levels.

(d) The schedule shall be codified in District policy and administrative directives.

IV. Additional Terms of Employment - Licensed Administrators

(1) A licensed administrator below the rank of assistant superintendent shall serve a probationary period of three years. The administrator and the district may mutually agree to a shorter probationary time period.

(2) Following successful completion of the probationary period, a licensed administrator shall, in accordance with ORS 342.845 (5), be employed pursuant to a three-year employment contract.

(3) Subsequent dismissal, reduction in pay, or contract non-extension shall be according to provisions of Oregon Law.

V. Additional Terms of Employment – Non Licensed Administrators

(1) Vacation leave for non-licensed administrators shall be granted in accordance with policy 5.60.031-P.

VI. Recruitment/Moving Expenses – Licensed and Non-Licensed Candidates

(1) Administrators normally will be expected to pay their own expenses associated with traveling and relocating to accept employment with the District, such as the expense of traveling to attend job interviews, travel to look for new housing, expenses associated with the sale of an existing home or purchase of a new home and expenses associated with moving a household to the Portland area. .

(2) In exceptional circumstances, the District may agree in advance to reimburse certain limited, reasonable expenses, such as the reasonable cost of travel and moving household goods, incurred by the Administrator in relocating to accept District employment. Such exceptional instances may involve a position for which it is difficult to find a qualified candidate after the District has undertaken reasonable recruitment efforts. This may occur, for instance, when the salary offered by the District is below market-rate and the District is not able to change the salary or a sufficient number of qualified candidates do not exist. Reimbursement for relocation expenses shall be the exception rather than the rule and shall be kept to a minimum amount necessary to meet the District's recruiting objectives.

(3) Any offer to reimburse travel for candidates or relocation expenses shall be approved in advance in writing by the superintendent before this benefit is offered to the candidate.

(4) The Superintendent shall develop an administrative directive specifying allowable travel or moving expenses for candidates and new administrative employees.

(5) The Board shall review and approve the administrative directive.

VII. Effective Dates

The effective date for new administrators, current non-contract administrators is upon Board approval of this policy.

Legal References: ORS 332.505, 332.507, 342.120, 342.140, 342.200, and 342.845(5)&(6)

History: 6/71, 5/76, 12/77, 1/79, 9/95, pending

_____	_____
DAVID WYNDE	LYNN WARD
CHAIRPERSON, BOARD OF DIRECTORS	DEPUTY CLERK